

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
JONI LARREA

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK,
NYPD OFFICER IMRAN AHMED (Shield # 24983),
NYPD OFFICER JONATHAN ACOSTA (Shield # 02224),
NYPD OFFICERS JOHN and JANE DOE #s 1-2 (names
and numbers unknown at this time), and Other Unidentified
members of the New York City Police Department,

Plaintiff Designates
Queens County
as the Place of Trial

Defendants.
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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 22, 2024

Respectfully submitted,

/s/ Rachelle Kredentser
Rachelle Kredentser, Esq.
Brownstein Legal, P.C.
40 Exchange Place
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER IMRAN AHMED (Shield # 24983), 114th Precinct, 34-16 Astoria Boulevard, Queens, New York, 11103-4425

NYPD OFFICER JONATHAN ACOSTA (Shield # 02224), 114th Precinct, 34-16 Astoria Boulevard, Queens, New York, 11103-4425

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
JONI LARREA,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK,
NYPD OFFICER IMRAN AHMED (Shield # 24983),
NYPD OFFICER JONATHAN ACOSTA (Shield # 02224),
NYPD OFFICERS JOHN and JANE DOE #s 1-2 (names
and numbers unknown at this time), and Other Unidentified
members of the New York City Police Department,

Defendants.

-----X
Plaintiff **Joni Larrea**, by his attorney, RACHELLE KREDENTSER, ESQ., as and for the Complaint herein,
alleges upon information and belief as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. Defendants unlawfully assaulted, stopped, searched, arrested, imprisoned, and maliciously prosecuted Plaintiff, and violated Plaintiff's First Amendment rights. Individually named and unnamed police officers deprived Plaintiff of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police Defendants and unnamed Defendant officers subjected him to, among other things, assault, battery, false arrest, unlawful search and seizure, malicious prosecution, negligence, gross negligence, intentional and negligent infliction of emotional distress, and implementation and continuation of an Defendant' unlawful municipal policy, practice, and custom. John and Jane Does failed to intervene

to prevent the deprivation of constitutional, civil, and common law rights. Plaintiff additionally alleges Defendant municipality and its Defendant agents were negligent in the hiring and retention of employees, and in the supervision, training and instruction of such employees. They are subject to *respondeat superior* liability under New York State law.

2. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper for the violation of their rights under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and for state tortious acts of Defendants.
3. Plaintiff demands a jury trial.

II. PARTIES

4. Plaintiff Joni Larrea, hereinafter "Plaintiff," resides in Queens County, State of New York.
5. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated Plaintiff's rights as described herein. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York ("Defendant City") assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
6. Defendant Imran Ahmed ("Defendant Ahmed"), assigned shield number 24983, was employed with the 114th Precinct of the New York City Police Department ("NYPD") on or about October 9, 2022, and was at all times relevant herein an officer, employee, and agent of the NYPD.
7. Defendant Ahmed is being sued in his individual and official capacities.

8. Defendant Jonathan Acosta (“Defendant Acosta”), assigned shield number 02224, was employed with the 114th Precinct of the NYPD on or about October 9, 2022, and was at all times relevant herein an officer, employee, and agent of the NYPD.
9. Defendant Acosta is being sued in his individual and official capacities.
10. At all times relevant herein, the named and unnamed individual Defendants were employed with the 114th precinct of the NYPD, or another precinct of the NYPD, and were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties as officers, employees and agents of the New York City Police Department. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the NYPD.
11. Defendants John and Jane Does 1-2 are officers and/or staff in the NYPD. Once discovered, Plaintiff will amend the complaint to supply Defendants’ full names. They are sued in their individual and official capacities.
12. In furtherance of his State causes of action, Plaintiff filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h)-hearing examination of Plaintiff on September 27, 2023.

III. STATEMENT OF FACTS

15. On October 9, 2022, at approximately 2:00 AM, Plaintiff Mr. Larrea was a passenger in a car in Astoria, Queens.

16. Plaintiff's brother was driving the vehicle, while Plaintiff sat in the front passenger seat, and Plaintiff's two cousins sat in the back seat.
17. The car was properly registered to Plaintiff.
18. A police car signaled for the car to stop. In response, Plaintiff's brother pulled the car over.
19. The two police officers, Defendant Ahmed and/or Defendant Acosta and/or John/Jane Does 1-2 or other unnamed police officers, approached the vehicle, one at the passenger side and the other at the driver's side.
20. Defendant officers commanded Plaintiff and his brother to roll down the front windows. Plaintiff and his brother complied with this command.
21. Defendant officers opened the driver's side door.
22. Defendant officers pulled Plaintiff's brother out of the driver's seat.
23. Defendant officers handcuffed Plaintiff's brother.
24. Plaintiff began recording the arrest using his cellular phone from inside the car. When Defendant officers handcuffed Plaintiff's brother, Plaintiff exited the car to continue to record the incident.
25. A Defendant officer then swung his arm/fist at Plaintiff.
26. Defendant officer swung at Plaintiff in an attempt to knock the phone out of Plaintiff's hand.
27. Defendant officer successfully knocked the phone out of Plaintiff's hand.
28. Defendant officer grabbed Plaintiff and threw Plaintiff to the concrete.
29. Plaintiff landed on the back of his head.
30. Once Plaintiff was thrown on the ground, Defendant officer sat on top of Plaintiff, and hit Plaintiff multiple times on Plaintiff's face.
31. Defendant officer weighed around 250 pounds. Plaintiff, who was around 115 pounds, struggled to breathe while Defendant officer sat on top of Plaintiff and attacked Plaintiff.

32. Defendant officers handcuffed Plaintiff
33. Defendant officers put Plaintiff into the back of a police car.
34. Plaintiff did not curse at any officer.
35. Plaintiff did not threaten any officer.
36. Plaintiff did not touch any officer.
37. Plaintiff did not resist arrest.
38. Defendant officers did not inform Plaintiff why they arrested he nor his brother, nor why the car was initially stopped.
39. Defendant police officers took Plaintiff to the 114th Precinct.
40. Plaintiff did not receive medical attention while in custody.
41. Plaintiff went to the hospital following his release from custody for treatment for among other issues, head, vision and neck problems. Plaintiff's head felt as if it were spinning, his vision was abnormal and his neck was in pain.
42. A doctor diagnosed Plaintiff with a concussion and vertigo.
43. At present, Plaintiff still suffers from head issues, including vertigo and dizziness.
44. Plaintiff now sees a neurologist for these persistent head injuries.
45. Prior to the arrest, Plaintiff did not need glasses and he had perfect vision. Following the arrest, a doctor prescribed Plaintiff to wear glasses for vision abnormalities.
46. Plaintiff suffered emotional injuries as a result of his false arrest, assault, and detention. Such injuries included mental anguish, shock, fright, apprehension, embarrassment and humiliation.
47. As a result of the arrest, Plaintiff missed days of work as a home care assistant.
48. Plaintiff was released on his own recognizance at arraignment.
49. On April 28, 2023, the court dismissed all of Plaintiff's pending criminal charges.

IV. CAUSES OF ACTION

A. State Claims

Count 1: ASSAULT

50. New York provides a tort claim against government employees for assault.
51. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 49 with the same force and effect as if more fully set forth herein.
52. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff. Plaintiff was assaulted by an individual Defendant NYPD Officer when the officer hit Plaintiff's phone/hand, jumped atop Plaintiff, and hit Plaintiff repeatedly.
53. Defendant officers were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York, via the New York City Police Department, which are therefore responsible for their conduct.
54. Defendant City, as the employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 2: BATTERY

55. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 49 with the same force and effect as if more fully set forth herein.
56. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive

manner with the intention of causing harmful and/or offensive bodily contact to Plaintiff and caused such battery. Plaintiff was forcibly hit, thrown to the ground, and repeatedly hit while on the ground. This act was committed without justification and was committed by a Defendant Officer prior to his false and illegal arrest.

57. Individual Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
58. The City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 3: FALSE ARREST AND FALSE IMPRISONMENT

59. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 49 as if fully set forth herein.
60. The acts and conduct of Defendant officers constitute false arrest and false imprisonment under the laws of the State of New York. Defendants Ahmed, Acosta, John and Jane Does 1-2, and/or unnamed Defendant officers intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
61. Specifically, Defendant officers, including but not limited to the Defendant Ahmed and/or Defendant Acosta, physically detained, arrested, and imprisoned Plaintiff.
62. The individually named Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The Defendant City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 4: MALICIOUS PROSECUTION

64. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 49 with the same force and effect as if more fully set forth at length herein.
65. The acts and conduct of the individual Defendants constitute malicious prosecution under the laws of the State of New York.
66. Defendants Ahmed, Acosta, and/or John and Jane Does and/or unnamed officers commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
67. Defendant officers, including Defendants Ahmed and Acosta, commenced the proceeding based on falsified claims that Plaintiff had struck an officer.
68. Defendants made such falsified allegations and forwarded such information to the Queens County District Attorney's Office.
69. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.
70. Absence of probable cause itself constitutes malice.
71. The prosecution and criminal proceedings terminated favorably to Plaintiff when the claims were dismissed.
72. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.

73. Defendant Officers were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York and the New York City Police Department, which are therefore responsible for their conduct.

Count 5: NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

74. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 49 with the same force and effect as if more fully set forth at length herein.
75. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties. Such negligence includes but is not limited to failure to adequately train, retain, hire and supervise.

Count 6: FAILURE TO INTERVENE

76. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 49 with the same force and effect as if more fully set forth at length herein.
77. Individual Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other Defendant members of the NYPD, subjecting Plaintiff to, *inter alia*, assault, battery, unlawful search and seizure, detention, and malicious prosecution.
78. Individual Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
79. Specifically individual Defendants, including but not limited to one of the first arriving Defendant officers, and those at the precinct, stood by and watched such unlawful conduct.

80. As a result of the foregoing, Plaintiff was subjected to assault, battery, illegal arrest, search and undue force upon his person over the course of his false arrest.
81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York via the New York City Police Department, which are therefore responsible for their conduct.
82. Defendant City, as the employer of Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 7: NEGLIGENCE

83. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 49 with the same force and effect as if more fully set forth at length herein.
84. Defendants owed a duty of care to Plaintiff.
85. Defendants Ahmed, Acosta, and/or John and Jane Does 1-2, and unnamed Defendant officers breached that duty of care by subjecting him to unjustified acts, including but not limited to, assault, battery, illegal arrest and search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
86. Defendants further breached the duty of care by not providing medical attention to Plaintiff, who suffered a concussion, vision abnormality, and facial bruising from the aforementioned Defendant officer's attack.
87. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
88. All of the foregoing occurred without any fault by Plaintiff.
89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 8: INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

90. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 49 with the same force and effect as if more fully set forth at length herein.
91. By the actions described herein, the individually named and unnamed individual Defendant officers, including Defendants Ahmed, Acosta, and/or John and Jane Does, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
92. Such outrageous included, but is not limited to, Defendant officers grabbing Plaintiff, throwing Plaintiff head-first into the ground, Defendant officers falsely arresting Plaintiff, and failing to timely provide adequate medical care and/or attention to Plaintiff.
93. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
94. Defendant City, as the employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

B. FEDERAL CLAIMS

95. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
96. All of the aforementioned acts were carried out under the color of state law.

97. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
98. The acts complained of were carried out by Defendants Ahmed, Acosta, John and Jane Does 1-2, and unnamed officers in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
99. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant City of New York and the New York City Police Department, all under the supervision of ranking officers of said department or office.
100. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**Count 9: VIOLATION OF THE FIRST AMENDMENT RIGHT TO FREEDOM OF SPEECH
UNDER 42 U.S.C. § 1983**

101. Plaintiff realleges and incorporates by reference as if fully set forth herein the allegations in all preceding paragraphs.
102. The First Amendment to the United States Constitution prohibits abridgement of the freedom of speech. The First Amendment is incorporated against the States by the Fourteenth Amendment. Persons violating the First Amendment under color of state law are liable at law and in equity under 42 U.S.C. § 1983.
103. Plaintiff's constitutionally protected speech included his recording of his brother's arrest for record and potential distribution.

104. Individual Defendant's actions, including but not limited to Defendant Ahmed and/or another Defendant officer hitting the phone out of Plaintiff's hand, unconstitutionally deprived Plaintiff of his First Amendment rights as Plaintiff faced the imminent threat of being assaulted again, being cited while engaging in constitutionally protected speech and his speech was chilled, and was further chilled as his phone was taken and he was assaulted by a Defendant officer. Defendant officers arrested him in retaliation for Plaintiff's recording of his brother's arrest.

**Count 10: VIOLATION OF THE FOURTH AMENDMENT - USE OF EXCESSIVE FORCE
UNDER 42 U.S.C. § 1983**

105. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
106. Defendants Ahmed, Acosta, unnamed officers, and/or John and Jane Does 1-2 used excessive force in violation of Plaintiff's rights under the Fourth Amendment to the United States Constitution to be free of the use of excessive force.
107. Defendant officers Ahmed, Acosta, unnamed officers, and/or John and Jane Does 1-2 committed the intentional torts of assault and battery against Plaintiff by hitting Plaintiff in the hand and face, tackling and/or throwing Plaintiff to the ground, and unlawfully arresting Plaintiff.
108. In so doing, the conduct of Individual NYPD Defendant officers went well beyond the reasonable force necessary to detain and arrest Plaintiff, and the amount of force that a reasonable officer under the same or similar circumstances would use.
109. Individual NYPD Defendant officers did not provide medical attention for injuries caused by the Defendant officers. Some of these injuries were immediately visible.
110. At the time of the acts of force, Plaintiff was complying with Defendants and did not act in a manner that would any way justify the use of physical force.

111. As a result of the foregoing, Defendants victimized Plaintiff and Plaintiff was the victim of the torts of assault and battery resulting in physical and emotional injuries.

**Count 11: VIOLATION OF THE FOURTH AMENDMENT - UNREASONABLE
SEIZURE/FALSE ARREST UNDER 42 U.S.C. § 1983**

112. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

113. The Fourth Amendment to the United States Constitution prohibits unreasonable searches and seizures. The purpose of the Fourth Amendment's protection against unreasonable seizures is "to prevent arbitrary and oppressive interference by enforcement officials with the privacy and personal security of individuals." The Fourth Amendment also ensures "the ability of persons to move or travel about the United States without fear of being stopped or detained unless the police have an adequate constitutional justification for doing so."

114. The Fourth Amendment is incorporated against the states by the Fourteenth Amendment.

115. As a result of the aforesaid conduct by Defendants Ahmed, Acosta, unnamed officers, and/or John and Jane Does 1-2, Plaintiff was subjected to an illegal, improper, and false arrest by the Defendants, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

116. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**Count 12: VIOLATION OF THE FOURTH AMENDMENT UNLAWFUL SEARCH
UNDER 42 U.S.C. § 1983**

117. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

118. Plaintiff was searched while individual NYPD officer Defendants Ahmed, Acosta, unnamed officers, and/or John and Jane Does 1-2 arrested Plaintiff without an individualized reasonable suspicion that Plaintiff had committed any crime.

119. As a result of the aforesaid conduct by individual Defendants, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause as set forth in the First, Fourth, Fifth, and Fourteenth Amendments.

120. Specifically, Individual Defendants lacked probable cause and manipulated evidence and arrested Plaintiff for plainly false allegations that Plaintiff struck a police officer.

121. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

Count 13: DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

122. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

123. Defendant Ahmed, Acosta, unnamed officers, and/or John and Jane Does 1-2 created false evidence against the Plaintiff, alleging that he committed the crime of assault.

124. These Defendants, including Defendant Ahmed and/or Defendant Acosta, forwarded false evidence and false information to prosecutors in the Queens County District Attorney's Office – namely, the Defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff committed offenses constituted assault, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest him for said offenses.

125. These Defendants misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

126. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, Defendants violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth Amendment, incorporated against the states by the Fourteenth Amendment of the United States Constitution.
127. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

Count 14: MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

128. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
129. Defendants Ahmed, Acosta, unnamed officers, and/or John and Jane Does 1-2 misrepresented and falsified evidence before the Queens County District Attorney, including false allegations that Plaintiff committed any illegal acts, including assault.
130. Defendants did not make a complete and full statement of facts to the District Attorney.
131. Defendants withheld exculpatory evidence from the District Attorney.
132. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.
133. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.
134. Defendants acted with malice in initiating criminal proceedings against Plaintiff.
135. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.
136. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.
137. Defendants acted with malice in continuing criminal proceedings against Plaintiff.

138. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.
139. Specifically, Defendants made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
140. Notwithstanding the perjurious and fraudulent conduct of defendants, the proceedings were terminated in Plaintiff's favor on April 28, 2023.
141. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and among other injuries, he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

Count 15: FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

142. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
143. Defendants Ahmed, Acosta, unnamed officers, and/or John and Jane Does 1-2 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence, including when other Defendant officers committed the acts of assault, battery, false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
144. Defendants further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
145. As a result of the Defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing, without probable cause.

Count 16: MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

146. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
147. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
148. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. failing to intervene when officers are unlawfully detaining and arresting individuals without probable cause; and
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

149. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
150. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
151. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
152. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.
153. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.
154. The acts complained of deprived the Plaintiff of his right:
- A. Not to be deprived of liberty without due process of law;
 - B. To be free from seizure and arrest not based upon probable cause;
 - C. To exercise freedom of speech and to not have that freedom abridged nor chilled; and
 - D. Not to have summary punishment imposed upon them.

WHEREFORE, JONI LARREA, respectfully requests this Court issue a judgment against Defendants on each cause of action in amounts to be determined upon a jury trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of

costs and disbursements of this action, interest and such other relief as appropriate under the law.

Specifically, Plaintiff requests the Court

- A. declare that Defendants violated Plaintiff's rights under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments;
- B. declare that preventing peaceful speech violates the First Amendment;
- C. award compensatory and punitive damages for the violation of their constitutional rights;
- D. award punitive and compensatory damages for tortious claims;
- E. award plaintiffs costs and a reasonable attorney's fee pursuant to 42 U.S.C. § 1988; and
- F. grant or award other such relief as this Court deems just and proper.

Dated: New York, New York
July 22, 2024

Respectfully submitted:

By: /s/ Rachelle Kredentser
Rachelle Kredentser, Esq.
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TO:

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NYPD OFFICER IMRAN AHMED (Shield # 24983), 114th Precinct, 34-16 Astoria Boulevard, Queens, New York, 11103-4425

NYPD OFFICER JONATHAN ACOSTA (Shield # 02224), 114th Precinct, 34-16 Astoria Boulevard, Queens, New York, 11103-4425

ATTORNEY'S VERIFICATION

I, **Rachelle Kredentser**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of **BROWNSTEIN LEGAL, P.C.**, I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files.

DATED: New York, New York
July 22, 2024

/s/ Rachelle Kredentser
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